

CODE OF CRIMINAL PROCEDURE  
TITLE 1. CODE OF CRIMINAL PROCEDURE  
CHAPTER 12. LIMITATION

Art. 12.01. FELONIES.

Except as provided in Articles [12.015](#) and [12.03](#), felony indictments may be presented within these limits, and not afterward:

(1) no limitation:

(A) murder and manslaughter;

(B) sexual assault under Section [22.011](#)(a)(2), Penal Code, or aggravated sexual assault under Section [22.021](#)(a)(1)(B), Penal Code;

(C) sexual assault, if:

(i) during the investigation of the offense biological matter is collected and the matter:

(a) has not yet been subjected to forensic DNA testing; or

(b) has been subjected to forensic DNA testing and the testing results show that the matter does not match the victim or any other person whose identity is readily ascertained; or

(ii) probable cause exists to believe that the defendant has committed the same or a similar sex offense against five or more victims;

(D) continuous sexual abuse of young child or disabled individual under Section [21.02](#), Penal Code;

(E) indecency with a child under Section [21.11](#), Penal Code;

(F) an offense involving leaving the scene of a collision under Section [550.021](#), Transportation Code, if the collision resulted in the death of a person;

(G) trafficking of persons under Section [20A.02](#)(a)(7) or (8), Penal Code;

(H) continuous trafficking of persons under Section [20A.03](#), Penal Code;

(I) compelling prostitution under Section

43.05(a)(2) or (3), Penal Code;

(J) tampering with physical evidence under Section 37.09(a)(1) or (d)(1), Penal Code, if:

(i) the evidence tampered with is a human corpse, as defined by that section; or

(ii) the investigation of the offense shows that a reasonable person in the position of the defendant at the time of the commission of the offense would have cause to believe that the evidence tampered with is related to a criminal homicide under Chapter 19, Penal Code;

(K) interference with child custody under Section 25.03(a)(3), Penal Code;

(L) burglary under Section 30.02, Penal Code, if:

(i) the offense is punishable under Subsection (d) of that section because the defendant entered a habitation with the intent to commit an offense under Section 22.011 or 22.021, Penal Code; and

(ii) during the investigation of the offense biological matter is collected and the matter:

(a) has not yet been subjected to forensic DNA testing; or

(b) has been subjected to forensic DNA testing and the testing results show that the matter does not match the victim or any other person whose identity is readily ascertained;

(M) failure to stop or report sexual or assaultive offense against child under Section 38.17, Penal Code; or

(N) continuous promotion of prostitution under Section 43.032, Penal Code;

(2) ten years from the date of the commission of the offense:

(A) theft of any estate, real, personal or mixed, by an executor, administrator, guardian or trustee, with intent to defraud any creditor, heir, legatee, ward, distributee, beneficiary or settlor of a trust interested in such estate;

(B) theft by a public servant of government

property over which the public servant exercises control in the public servant's official capacity;

(C) forgery or the uttering, using, or passing of forged instruments;

(D) injury to an elderly or disabled individual punishable as a felony of the first degree under Section 22.04, Penal Code;

(E) sexual assault, except as provided by Subdivision (1) or (10);

(F) arson;

(G) trafficking of persons under Section 20A.02(a)(1), (2), (3), or (4), Penal Code;

(H) compelling prostitution under Section 43.05(a)(1), Penal Code;

(I) real property theft under Section 31.23, Penal Code; or

(J) real property fraud under Section 32.60, Penal Code;

(3) seven years from the date of the commission of the offense:

(A) an offense under Chapter 32, Penal Code, except as provided by Subdivision (2)(C) or (J);

(B) a felony violation under Chapter 162, Tax Code;

(C) money laundering;

(D) health care fraud under Section 35A.02, Penal Code;

(E) bigamy under Section 25.01, Penal Code, except as provided by Subdivision (7); or

(F) possession or promotion of child pornography under Section 43.26, Penal Code;

(4) five years from the date of the commission of the offense:

(A) theft or robbery;

(B) except as provided by Subdivision (5), kidnapping;

(C) except as provided by Subdivision (1) or (5),

burglary;

(D) injury to an elderly or disabled individual that is not punishable as a felony of the first degree under Section [22.04](#), Penal Code;

(E) abandoning or endangering an elderly or disabled individual;

(F) insurance fraud;

(G) assault under Section [22.01](#), Penal Code, if the assault was committed against a person whose relationship to or association with the defendant is described by Section [71.0021\(b\)](#), [71.003](#), or [71.005](#), Family Code;

(H) continuous violence against the family under Section [25.11](#), Penal Code; or

(I) aggravated assault under Section [22.02](#), Penal Code;

(5) if the investigation of the offense shows that the victim is younger than 17 years of age at the time the offense is committed, 20 years from the 18th birthday of the victim of one of the following offenses:

(A) kidnapping under Section [20.03](#), Penal Code, or aggravated kidnapping under Section [20.04](#), Penal Code; or

(B) subject to Subdivision (1)(L), burglary under Section [30.02](#), Penal Code, if the offense is punishable under Subsection (d) of that section because the defendant entered a habitation with the intent to commit an offense described by Subdivision (1)(B) or (D) of this article or Paragraph (A) of this subdivision;

(6) 20 years from the 18th birthday of the victim of one of the following offenses:

(A) trafficking of a child under Section [20A.02\(a\)\(5\)](#) or (6), Penal Code; or

(B) sexual performance by a child under Section [43.25](#), Penal Code;

(7) ten years from the 18th birthday of the victim of the offense:

(A) injury to a child under Section [22.04](#), Penal Code;

(B) bigamy under Section [25.01](#), Penal Code, if the investigation of the offense shows that the person, other than the legal spouse of the defendant, whom the defendant marries or purports to marry or with whom the defendant lives under the appearance of being married is younger than 18 years of age at the time the offense is committed; or

(C) abandoning or endangering a child;

(8) ten years from the date the offense was discovered: trafficking of a disabled individual under Section [20A.02](#)(a)(5) or (6), Penal Code;

(9) four years from the date the offense was discovered: failure to report child abuse or neglect if the offense is punishable as a state jail felony under Section [261.109](#)(c), Family Code;

(10) two years from the date the offense was discovered: sexual assault punishable as a state jail felony under Section [22.011](#)(f)(2), Penal Code; or

(11) three years from the date of the commission of the offense: all other felonies.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1973, 63rd Leg., p. 975, ch. 399, Sec. 2(B), eff. Jan. 1, 1974; Acts 1975, 64th Leg., p. 478, ch. 203, Sec. 5, eff. Sept. 1, 1975.

Amended by Acts 1983, 68th Leg., p. 413, ch. 85, Sec. 1, eff. Sept. 1, 1983; Acts 1983, 68th Leg., p. 5317, ch. 977, Sec. 7, eff. Sept. 1, 1983; Acts 1985, 69th Leg., ch. 330, Sec. 1, eff. Aug. 26, 1985; Acts 1987, 70th Leg., ch. 716, Sec. 1, eff. Sept. 1, 1987; Acts 1991, 72nd Leg., ch. 565, Sec. 6, eff. Sept. 1, 1991; Acts 1995, 74th Leg., ch. 476, Sec. 1, eff. Sept. 1, 1995; Acts 1997, 75th Leg., ch. 740, Sec. 1, eff. Sept. 1, 1997; Acts 1999, 76th Leg., ch. 39, Sec. 1, eff. Sept. 1, 1999; Acts 1999, 76th Leg., ch. 1285, Sec. 33, eff. Sept. 1, 2000; Acts 2001, 77th Leg., ch. 12, Sec. 1, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1479, Sec. 1, eff. Sept. 1, 2001; Acts 2001, 77th Leg., ch. 1482, Sec. 1, eff. Sept. 1, 2001; Acts 2003, 78th Leg., ch. 371, Sec. 6, eff. Sept. 1, 2003; Acts 2003, 78th Leg., ch. 1276, Sec. 5.001, eff. Sept. 1, 2003.

Amended by:

Acts 2005, 79th Leg., Ch. 1162 (H.B. [3376](#)), Sec. 6, eff.

September 1, 2005.

Acts 2007, 80th Leg., R.S., Ch. 285 (H.B. [716](#)), Sec. 6, eff.

September 1, 2007.

Acts 2007, 80th Leg., R.S., Ch. 593 (H.B. [8](#)), Sec. 1.03, eff.

September 1, 2007.

Acts 2007, 80th Leg., R.S., Ch. 640 (H.B. [887](#)), Sec. 1, eff.

September 1, 2007.

Acts 2007, 80th Leg., R.S., Ch. 841 (H.B. [959](#)), Sec. 1, eff.

September 1, 2007.

Reenacted and amended by Acts 2009, 81st Leg., R.S., Ch. 87 (S.B. [1969](#)), Sec. 6.001, eff. September 1, 2009.

Reenacted and amended by Acts 2009, 81st Leg., R.S., Ch. 1227 (S.B. [1495](#)), Sec. 38, eff. September 1, 2009.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 1 (S.B. [24](#)), Sec. 2.03, eff.

September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 122 (H.B. [3000](#)), Sec. 2, eff.

September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 222 (H.B. [253](#)), Sec. 1, eff.

September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 620 (S.B. [688](#)), Sec. 1, eff.

September 1, 2011.

Reenacted and amended by Acts 2013, 83rd Leg., R.S., Ch. 161 (S.B. [1093](#)), Sec. 3.003, eff. September 1, 2013.

Amended by:

Acts 2015, 84th Leg., R.S., Ch. 332 (H.B. [10](#)), Sec. 1, eff.

September 1, 2015.

Acts 2015, 84th Leg., R.S., Ch. 918 (H.B. [189](#)), Sec. 2, eff.

September 1, 2015.

Acts 2017, 85th Leg., R.S., Ch. 392 (S.B. [998](#)), Sec. 1, eff.

September 1, 2017.

Acts 2019, 86th Leg., R.S., Ch. 381 (H.B. [2894](#)), Sec. 1, eff.

September 1, 2019.

Acts 2019, 86th Leg., R.S., Ch. 408 (H.B. [8](#)), Sec. 2, eff.

September 1, 2019.

Acts 2019, 86th Leg., R.S., Ch. 436 (S.B. [1259](#)), Sec. 1, eff.

September 1, 2019.

Acts 2021, 87th Leg., R.S., Ch. 221 (H.B. [375](#)), Sec. 2.07, eff. September 1, 2021.

Acts 2021, 87th Leg., R.S., Ch. 837 (S.B. [109](#)), Sec. 6, eff. September 1, 2021.

Acts 2023, 88th Leg., R.S., Ch. 93 (S.B. [1527](#)), Sec. 2.07, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 118 (H.B. [467](#)), Sec. 1, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 127 (H.B. [1207](#)), Sec. 1, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 422 (H.B. [1769](#)), Sec. 1, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 520 (H.B. [3025](#)), Sec. 2, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 689 (H.B. [1506](#)), Sec. 1, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 704 (H.B. [2019](#)), Sec. 1, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 709 (H.B. [2190](#)), Sec. 119, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 768 (H.B. [4595](#)), Sec. 5.001, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 830 (H.B. [2187](#)), Sec. 2, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 885 (H.B. [4635](#)), Sec. 3, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 1041 (S.B. [129](#)), Sec. 1, eff. September 1, 2023.

Reenacted and amended by Acts 2025, 89th Leg., R.S., Ch. 250 (H.B. [1778](#)), Sec. [4.01](#), eff. September 1, 2025.

Reenacted and amended by Acts 2025, 89th Leg., R.S., Ch. 761 (S.B. [127](#)), Sec. 1, eff. September 1, 2025.

Reenacted and amended by Acts 2025, 89th Leg., R.S., Ch. 887 (S.B. [2798](#)), Sec. 1, eff. September 1, 2025.

Reenacted and amended by Acts 2025, 89th Leg., 2nd C.S., Ch. 16 (S.B. [16](#)), Sec. 1, eff. December 4, 2025.

Art. 12.015. RACKETEERING AND UNLAWFUL DEBT COLLECTION.

(a) Except as provided by Subsection (b), a felony indictment for an offense under Section 72.02, 72.03, or 72.04, Penal Code, must be presented not later than five years from the date of the commission of the offense.

(b) If the attorney general or a local prosecutor, as defined by Section 140B.001, Civil Practice and Remedies Code, brings an action in the name of the state under Chapter 140B, Civil Practice and Remedies Code, during the limitations period described by Subsection (a), that limitations period is suspended while the attorney general's or local prosecutor's action is pending. If a limitations period is suspended under this subsection, the limitations period is extended for two years.

Added by Acts 2023, 88th Leg., R.S., Ch. 885 (H.B. 4635), Sec. 4, eff. September 1, 2023.

Art. 12.02. MISDEMEANORS. (a) Except as provided by Subsections (b) and (c), the following charging instruments may be presented within two years from the date of the commission of the offense, and not afterward:

(1) an indictment or information for any Class A or Class B misdemeanor; and

(2) a complaint or information for any Class C misdemeanor.

(b) An indictment, information, or complaint, as applicable, for assault under Section 22.01, Penal Code, may be presented within three years from the date of the commission of the offense, and not afterward, if the offense:

(1) is punishable as a misdemeanor; and

(2) was committed against a person whose relationship to or association with the defendant is described by Section 71.0021(b), 71.003, or 71.005, Family Code.

(c) An indictment or information, as applicable, for failure to report child abuse or neglect may be presented within three years from the date the offense was discovered, and not afterward, if the offense is punishable as a Class A misdemeanor under Section 261.109(c), Family Code.



Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1973, 63rd Leg., p. 975, ch. 399, Sec. 2(B), eff. Jan. 1, 1974.

Amended by:

Acts 2009, 81st Leg., R.S., Ch. 472 (S.B. 410), Sec. 1, eff. September 1, 2009.

Acts 2023, 88th Leg., R.S., Ch. 118 (H.B. 467), Sec. 2, eff. September 1, 2023.

Acts 2025, 89th Leg., R.S., Ch. 761 (S.B. 127), Sec. 2, eff. September 1, 2025.

Art. 12.03. AGGRAVATED OFFENSES, ATTEMPT, CONSPIRACY, SOLICITATION, ORGANIZED CRIMINAL ACTIVITY. (a) The limitation period for criminal attempt is the same as that of the offense attempted.

(b) The limitation period for criminal conspiracy or organized criminal activity is the same as that of the most serious offense that is the object of the conspiracy or the organized criminal activity.

(c) The limitation period for criminal solicitation is the same as that of the felony solicited.

(d) Except as otherwise provided by this chapter, any offense that bears the title "aggravated" shall carry the same limitation period as the primary crime.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1973, 63rd Leg., p. 975, ch. 399, Sec. 2(B), eff. Jan. 1, 1974.

Amended by Acts 1987, 70th Leg., ch. 1133, Sec. 1, eff. Sept. 1, 1987; Subsec. (d) amended by Acts 1997, 75th Leg., ch. 740, Sec. 2, eff. Sept. 1, 1997.

Art. 12.04. COMPUTATION. The day on which the offense was committed and the day on which the indictment or information is presented shall be excluded from the computation of time.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1973, 63rd Leg., p. 976, ch. 399, Sec. 2(B), eff. Jan. 1, 1974.

Art. 12.05. ABSENCE FROM STATE AND TIME OF PENDENCY OF INDICTMENT, ETC., NOT COMPUTED. (a) The time during which the

accused is absent from the state shall not be computed in the period of limitation.

(b) The time during the pendency of an indictment, information, or complaint shall not be computed in the period of limitation.

(c) The term "during the pendency," as used herein, means that period of time beginning with the day the indictment, information, or complaint is filed in a court of competent jurisdiction, and ending with the day such accusation is, by an order of a trial court having jurisdiction thereof, determined to be invalid for any reason.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1973, 63rd Leg., p. 976, ch. 399, Sec. 2(B), eff. Jan. 1, 1974.

Art. 12.06. AN INDICTMENT IS "PRESENTED," WHEN. An indictment is considered as "presented" when it has been duly acted upon by the grand jury and received by the court.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1973, 63rd Leg., p. 976, ch. 399, Sec. 2(B), eff. Jan. 1, 1974.

Art. 12.07. AN INFORMATION IS "PRESENTED," WHEN. An information is considered as "presented," when it has been filed by the proper officer in the proper court.

Acts 1965, 59th Leg., vol. 2, p. 317, ch. 722. Amended by Acts 1973, 63rd Leg., p. 976, ch. 399, Sec. 2(B), eff. Jan. 1, 1974.